

POST INDEPENDENCE DEVELOPMENTS

PARTITION + CONSTITUENT ASSEMBLY MODULE-2 (REVISED & NEW)



CONSEQUENCES OF PARTITION

1

ISSUE OF REFUGEES



- Camps were set up in West Punjab for the settlement of refugees.
- Hindus and Sikhs from West Punjab travelled to India on rail, road, sea and foot.
- The lands vacated in India by the Muslims were used for resettling the refugees the west.
- Thousands of refugees made their homes in Delhi. Refugees from Sindh spread across Western India.
- India allocated 4 hectares of land for these refugees per family and extended loans to buy seeds and equipment.

CONSEQUENCES OF PARTITION

2

COMMUNAL RIOTS



2

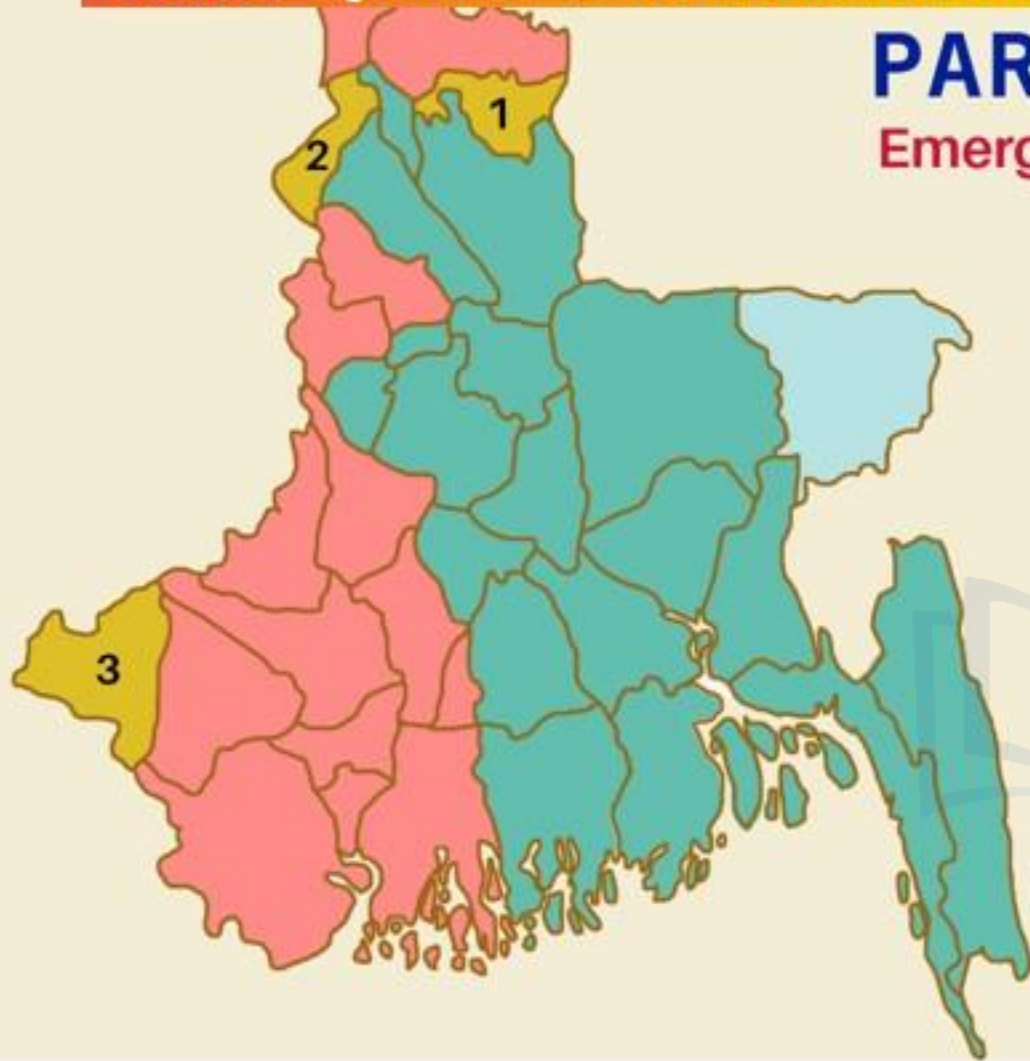
LOST HOME



- As the British had expected and Mahatma Gandhi had feared, communal riots broke out in several parts of the country and cities like Lahore, Amritsar, Calcutta got divided into “Communal Zones”.
- A sense of loss persisted among the people. Erstwhile neighbor now became enemies and distrust prevailed among the people

PARTITION OF BENGAL 1947

Emergence Of East Pakistan (Future Bangladesh)
& Indian State Of West Bengal



East Pakistan



District Of Sylhet Awarded To
East Pakistan



West Bengal (India)



Areas Annexed To West
Bengal By Indian Govt.

1. Princely State Of Kuch Behar

2. Parts Of District Of Purnea (Bihar)

3. Purulia District (Bihar)

- When Jinnah began the movement for a separate state of Pakistan, the Muslim majority provinces of Punjab and Bengal wanted to create a state of Pakistan.
- The Boundary Commission, thus, decided that the Muslim majority districts in Bengal and Punjab would become east and west Pakistan respectively.



- Sir Radcliffe undertook the task of partitioning Bengal and Punjab. He did not have any prior information about India and its territory. He was given few weeks to demarcate boundaries in East and West of India. He was well aware that his non-scientific decision of demarcation of boundaries would be hated by many in the years to come.
- Bengal had been divided with the Eastern wing going to Pakistan and the western wing going to India as decided by the Boundary Commission. The announcement of Bengal partition was done before the transfer of power, but the announcement of partition of Punjab was made after independence.

HOW WAS THE PARTITION OF BENGAL AND PUNJAB DIFFERENT?



LESSONS FROM PAST

- Unlike Bengal, Punjab did not have a history of conflict between Hindus and Muslims.
- Bengal had an experience of partition and relocation in the past; but people of Punjab had been living peacefully and were unwilling to relocate and rehabilitate.

ECONOMIC AND EMOTIONAL LOSS

- Areas of western Punjab had richer soils and were more irrigated. The Sikhs had created 'canal colonies' in the west. Though East Bengal also took some richer agricultural areas, it did not affect lives of people so drastically.
- Moreover, it was an emotional question of leaving their homes.

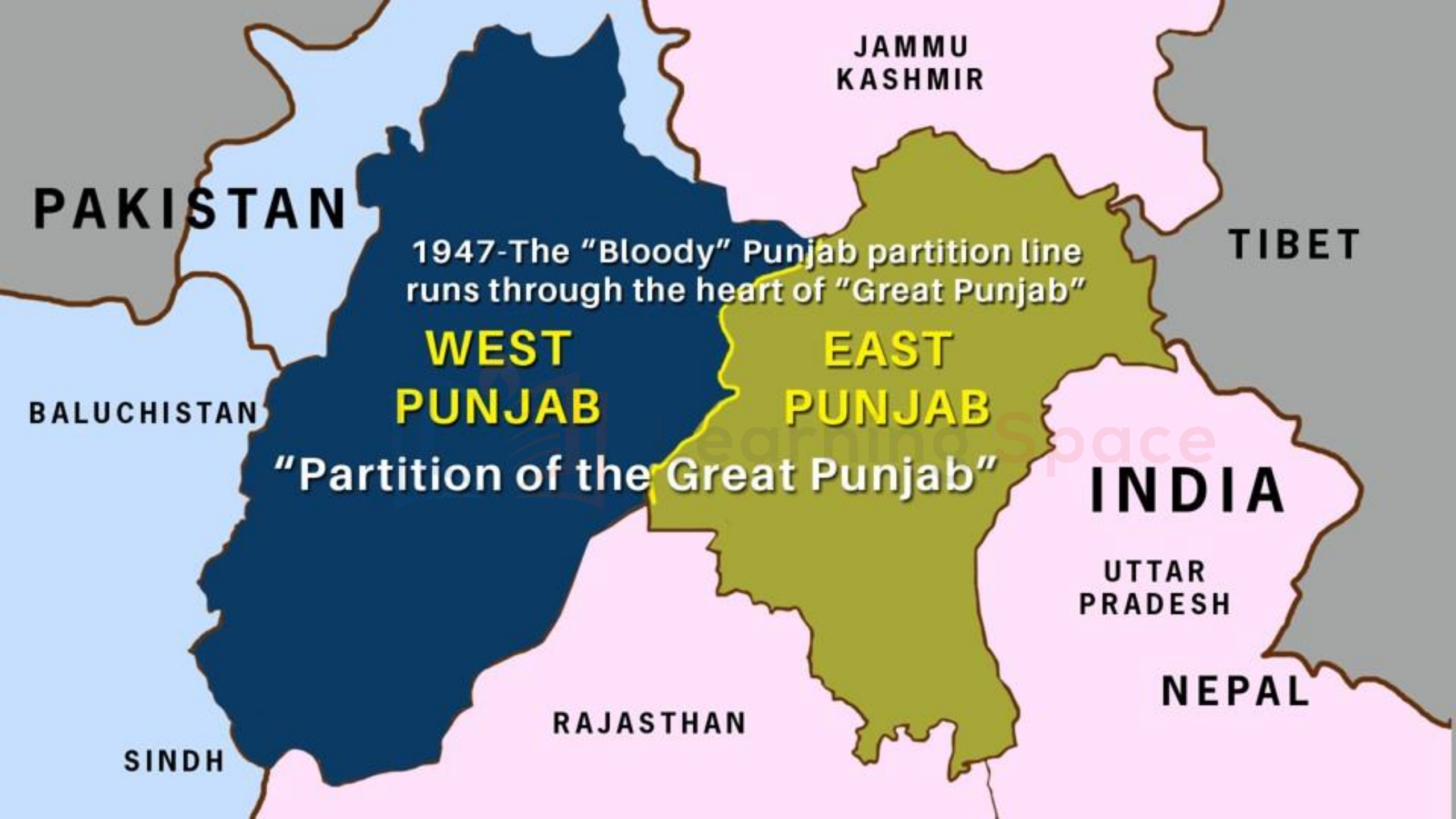
HOW WAS THE PARTITION OF BENGAL AND PUNJAB DIFFERENT?

HINDUS OF PUNJAB

- There was a difference between the Hindus of Bengal and Punjab. The Hindus of Bengal used to be Western educated.
- They used to have a good standard of living and used to bring back wealth to Bengal.
- The Hindus of Punjab were merchants and moneylenders.

SIKH COMMUNITY

- In Punjab, the presence of Sikhs, in addition to Hindus and Muslims complicated the matter.
- They were historically closer to the Hindus than the Muslims. They were unwilling to accept the partition as there were Sikh farmers on both sides of the province.
- Their holy city was in East Punjab and the birthplace of the founder of their religion was in West Punjab. They did not want to lose access to either of the two areas.



PAKISTAN

**JAMMU
KASHMIR**

TIBET

BALUCHISTAN

**WEST
PUNJAB**

**EAST
PUNJAB**

"Partition of the Great Punjab"

INDIA

**UTTAR
PRADESH**

NEPAL

RAJASTHAN

SINDH

HOW WAS THE PARTITION OF BENGAL AND PUNJAB DIFFERENT?



- The delay in taking the decision and its announcement problematized the issue even further.
- When the Boundary Award was announced on 16 August, there was disgruntlement among Indians.
- Muslims wanted Gurdaspur to go to Pakistan and the Sikhs were unhappy that Nankana Sahib, the birthplace of the founder of their religion went to Pakistan.



HOW WAS THE PARTITION OF BENGAL AND PUNJAB DIFFERENT?



- The armed Sikhs attacked the Muslims. These Muslims ran to Lahore. The responsibility of managing the population and controlling the violence was the responsibility of the new governments of India and Pakistan.
 - About 10 million refugees travelled by foot on both sides of the border. Ultimately, West Pakistan did not have major presence of Hindus; Indian Punjab did not have much signs of Muslims.
 - PM Nehru announced that Muslims should be able to live and work freely in India.
-
- Soon Congress passed a resolution on the rights of minorities. It said that the Congress never supported the Two-Nation theory and India would continue to be a land of many religions and races. India was hoped to become a democratic secular nation.

FATHER OF NATION



- Mahatma Gandhi went on to fast in Calcutta to oppose the Partition.
- On 31 August, 1947 after violence increased in Calcutta, Gandhiji went to fast unto death. This helped in subsiding the violence and processions of communal harmony began.
- When violence continued, Gandhiji began a fast on January 13 and he agreed to end it on the ground that Government of India gave the money it owed to Pakistan.
- He hoped that though divided into two nations, India and Pakistan would continue to be friends and brothers.

FATHER OF NATION



**GODSE BEFORE
ASSASSINATING MAHATMA**

- Refugees and other militant groups threatened Gandhiji and attacked him as well.
- On 30 January, Gandhiji was shot during his daily prayers by Nathuram Godse.
- He was anguished by Gandhi's constant reconciliation of the Muslims including the pro-Muslim fast.

PM Nehru and Sardar Patel called for unity and pledged to uphold the principles of peace and non-violence even after Gandhiji's death.

CONSEQUENCES OF PARTITION

4

WOMEN



- Thousands of women, estimates range from 25,000 to 29,000 Hindu and Sikh women and 12,000 to 15,000 Muslim women, were abducted, raped, forced into marriage, forced to convert and killed, on both sides of the border.
- After partition had settled, women were identified and sent back to their families.

The main victims of partition were the women.

CONSEQUENCES OF PARTITION

5 COMMUNIST PARTY



- There were also serious food shortages in the country. The imports of grains increased. The situation was ripe for the Communists in Bengal and Hyderabad to assume control.
- They destroyed homes of their landlords and redistributed their lands to the cultivators in Telangana. Their success in Hyderabad gave them hope to join an All India movement.
- They called for peasant uprisings and held strikes across the country. They supported the cause of the laborers in the factories and students in universities.

CSE MAINS QUESTIONS

- 1 What was the refugee crisis in post partition of India?
- 2 Who was responsible for the Partition of India?
- 3 Was the partition necessary? Justify.
- 4 Why did the Congress accept the Partition?
- 5 How was the Partition of Punjab different from Bengal?

CONSTITUENT ASSEMBLY



- 1** A special session of the Constituent Assembly having a body of representative Indians, started the work for a new Constitution.
- 2** PM Nehru listed 13 Cabinet Ministers including Members of Congress like Vallabhai Patel, Maulana Abul Kalam Azad, and non-Congress members like BR Ambedkar, Shyama Prasad Mookherjee and businessmen like RK Chetty. The idea was to include able men and not solely Congress representatives. It also included a woman and two untouchables. The members of the Constituent Assembly were chosen on the basis of the 1946 Provincial elections. On 9 December 1946 the first meeting of the Constituent Assembly took place.
- 3** According to BR Ambedkar, Constitutional morality is not a natural sentiment. It has to be cultivated. He felt that Indian soil was still undemocratic.

Framing of the Constitution



1 Constituent Assembly set up by the Cabinet Mission Plan of 1946.

2 In the 1930s, Congress insisted that Indians would frame their own Constitution. In 1946, Lord Wavell agreed to it.

- 3**
- It consisted of 389 members and held its first meeting on 9 December, 1946.
 - With the withdrawal of the Muslim league, the strength was reduced to 299 members.
 - The Assembly set up 13 Committees for framing the Constitution.

4 The sessions of the Constituent Assembly took place in the background of food scarcity, religious riots, refugee settlements and class wars. PM Nehru had already moved the Objective Resolution on 13 December 1946. The Assembly sought to bring National revolution based on liberty and democracy and social revolution based on emancipation and equality.

POST INDEPENDENCE DEVELOPMENTS

COLONIAL HANGOVER



- 1 It was decided that India would follow the British model of government where there would be a Lower house of the Parliament and Lower House of State
- 2 Ambedkar opposed the Gandhian idea of Panchayati Raj, Village Councils.
- 3 Legislature/Provinces were to be directly elected by people on the basis of Universal Adult Franchise.
- 4 The Second Chamber of Parliament was to represent the States and was to be indirectly elected by the people.
- 5 Like the British Monarch, the Head of the State in India was a titular Head having no real power.
- 6 Judiciary was to stay away from party politics. The Supreme Court of India was a guardian of social revolution and guarantor of civil and minority rights.

REPRESENTATIVE DEMOCRACY



- 1** 82 percent of the members of the Assembly were from the Congress. It included members of all religions, and castes - thus expanding the social base of the Assembly.
- 2** Besides Congress, it included members of the opposition and women members, belonging to Congress as well as opposition.
- 3** The Constituent Assembly included representations from the Princely states which had joined the Indian Union.
- 4** It included several members from the law background. Members included people with moral vision, political skill and legal acumen.
- 5** Initially, the Muslim League boycotted the sessions of the Assembly.

QUESTION OF IDENTITIES



BEGUM AIZAZ RASUL



HANSA MEHTA

RELIGIOUS ISSUE

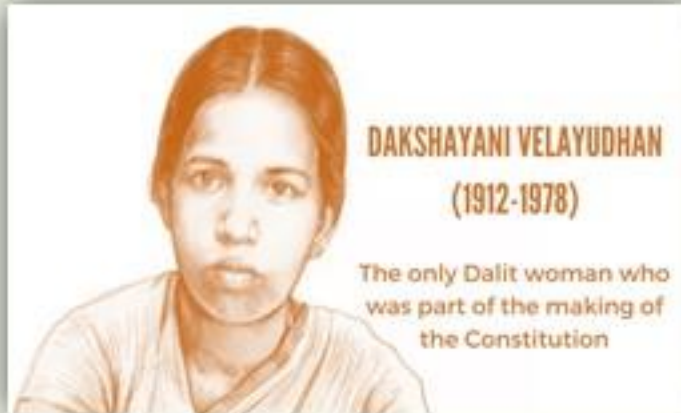
- Sardar Patel opposed the continuation of separate electorates as it had divided the country. He strongly stood for **One country**.
- Some Muslims like Begum Aizaz Rasul were also opposed to separate electorates as it separated the minorities from the majorities

WOMEN ISSUE

Women like Hansa Mehta of Bombay asked for social, economic and political justice instead of Reservations.

POST INDEPENDENCE DEVELOPMENTS

QUESTION OF IDENTITIES



JAIPAL SINGH

DALIT ISSUE

- Reservations for Untouchables was discussed to end the age-old horrific discrimination.
- Abolition of Untouchability was made a Fundamental Right.

TRIBAL ISSUE

- On the Tribal question, Jaipal Singh, an Adivasi, who won a Gold medal in the 1928 Olympics said Tribals were original inhabitants of the subcontinent.
- In 1938, Jaipal founded an Adivasi Mahasabha calling for the creation of Jharkhand from Bihar.

HISTORICALLY DEMOCRATIC

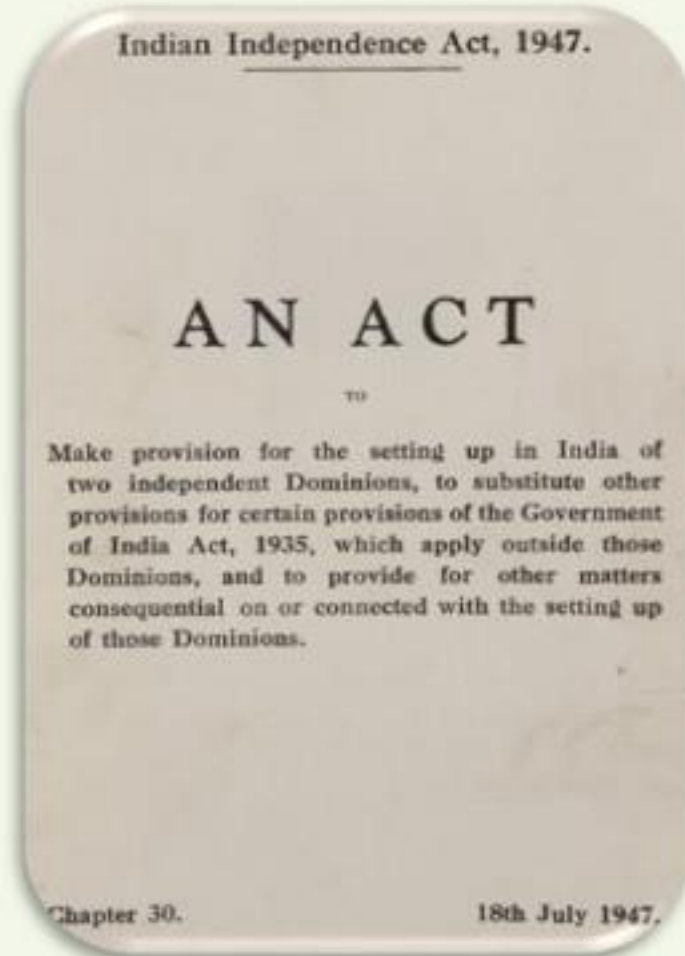


- 1 According to scholars, the 'Conscience of the Constitution' laid in Part III and Part IV of the Constitution.
- 2 Some argued that the Universal Adult Suffrage was an Ancient Indian concept mentioning a 1000 - yr old inscription Coonjeevaram temple where elections were held on leaves as ballot papers and pots as ballot boxes.
- 3 Others argued that India was the originator of Republican system of government and spread to other parts of the world. The violence of the time became the reason for the centralization to end the chaos and bring economic development

POST INDEPENDENCE DEVELOPMENTS

LESSONS OF GOVERNMENT OF INDIA ACT, 1935

The Constitution established a complex system of fiscal federalism which it borrowed from the Government of India Act of 1935.



- 1 Centre retained all the proceeds for taxes like Custom taxes.
- 2 Centre shared some taxes with states like Income tax and excise duty.
- 3 States were assigned with taxes like Estate duties.
- 4 Some taxes like land and property taxes and sales tax was levied and collected by the states.
- 5 K Santhanam of Madras critiqued this system arguing that it would make the states beggars before the Center. The deviation from Government of India Act of 1935 was Ambedkar proposed a stronger Center as compared to the 1935 Act.

LANGUAGE ISSUE



PURUSHOTTAMDAS TANDON

- The language issue was another major issue raised by RV Dhulekar from United provinces. He argued that Hindustani was the language of India.
- Hindi was written in Devnagri script and drew upon Sanskrit. Urdu was modified Arabic script and drew on Persian and Arabic. Hindustani was an amalgamation of the two. But all these languages were unknown in southern India.
- Both JL Nehru and Gandhi were of the opinion that Hindustani could unite North and South India, Hindus and Muslims.
- Hence, it qualifies to be the national language.
- Hindustani was unacceptable to South India.
- Purushottamdas Tandon, the Vice President of Hindi Literature Conference wanted Hindi to get rid of all foreign elements and wanted Hindi in Devnagri script only to be the national language.

CONSTITUTION OF INDIA



- The Constitution consists of 395 Articles and 12 Schedules. It is one of the longest Constitutions in the world and came into effect in January 1950. It was drafted during December 1946 and December 1949.
- Though the major part of the Constitution came into force on 26 January 1950, the provisions related to Citizenship, Elections and provisional Parliament came into force on 26 November, 1949.

CONSTITUTION ... IMPORTANT FEATURES

Constitutions of UK, USA, Ireland, and Canada, to name a few had profound influence on the Indian Constitution



Some of its important features:

- ✓ Bulkiest Constitution of the world
- ✓ Combination of Rigidity and Flexibility
- ✓ Parliamentary system of government
- ✓ Federal system with Unitary bias
- ✓ Democratic State
- ✓ Fundamental Rights and Fundamental Duties
- ✓ Secular State
- ✓ Single Citizenship
- ✓ Panchayat raj
- ✓ Provision for Minorities

NEWS ARTICLES

- **The Employment News of January 2020** had a Special content covering the **Making of the Constitution**.
- **Down to Earth** came with an article explaining the **incremental stages of formulation of the Constitution**. The Assembly had 12 rounds of sessions between 9 December 1946 to January 24, 1950.
- **Times of India** published an article relating to **Republic at 70**: Provincial MLAs voted in three blocs – Muslim, Sikh, and General (Hindus and others) – for candidates to represent these communities in the Assembly. The provinces elected a total of 296 members roughly in the ratio of one member for one million people.
- The late nineteenth and twentieth-century India cemented a secure foundation for the **argumentative tradition**. The **Indian National Congress** was founded in 1885 aimed to influence policymaking through deliberations and discussions. The Nehru Report of 1928, was a response to the British challenge to Indians to draft a constitution.
- **Article 5 establishes the basic principles of citizenship**. This article was debated in the backdrop of the partition of India and Pakistan.
- **Jawaharlal Nehru was not keen on linking religion to citizenship**. The **Citizenship Amendment Act, 2019, overturns the Constituent Assembly's stance on religion and citizenship**.

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